सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ००९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 5 **Date:20.05.2019**

दिनांक 27.02.2019 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 25.04.2019

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 25.04.2019 को 11.30 बजे हुई। जिसकी अध्यक्षता श्री विनायक आज़ाद और श्री अनंत कृष्णन द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) held on 25.04.2019 at 11.00 A.M. was presided over by Shri Vinayak Azaad, Commissioner of Customs (Import) & Shri S. Ananth Krishnan Commissioner of Customs (Export).

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री पवन खेतान Shri Pawan Khetan, संयुक्त आयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री तपन कुमार Shri Tapan Kumar, संयुक्त आयुक्त (निर्यात)/Jt. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री राजेश क. साहु /Shri Rajesh k. sahu उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. के. मोहन्ती/ Shri B. K. Mohanty सहायक आयुक्त, (जनरल)/Asst. Commissioner(General)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायक आयुक्त (आयात)/Asst. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
Shri Mahendra M Kholwadwala सहायक आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
Shri K. D. Gohil/श्री एस. डी. गोहिल सहायक आयुक्त/Asst. Commissioner (APSC)	Airport Special Cargo, हवाई अड्डा विशेष कार्गो
Shri R. P. Borker/श्री आर. पी. बोरकर सहायक आयुक्त (आयात)/Asstt. Commissioner(Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Ashok Satavase, Cdr.Lokesh (Retd.), Mohamed Nasir, Shri Nandan Kanchan	MIAL (Custodian)
Shri Kaushal H. Thakker	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA
Ms. Jyotsna Patil	JET Airways
Shri Bala Ayer, Shri Vineet Agarwal, Mohsin G. Charania	ACAAI
Shri K. D. Dhule,	Air India & AIATSL
Ms. Jyotsna Patil	JET Airways

Shri Sanjay Patankar, Shri Prasad Gengusetti	Emirates Cargo
Shri Paresh Shah	WISA
Sandeep B.Kadam	Liladhar pasoo
Shri Sunil Kumar Singh	SBI
Mr.Zubin Daver	Cathay Pacific

At the outset the Commissioner of Customs (Import) and the Commissioner of Customs (Export) welcomed the members of trade Customs Brokers, Airlines Representatives, Custodian Representatives, and other stake holders present in the meeting and started the meeting. During the meeting following agenda points were discussed.

(i). Points discussed in the previous meeting

A. Singapore Airlines insisting for Demand Draft for payment of DO Charges:

In the previous meeting the representative of BCBA had submitted that Customs, ACC, Mumbai had issued Facility Notice No. 16/2016 dated 18.11.2016, wherein it is clearly stated that airline consolidation etc. should accept cheque from custom brokers for timely clearance. However trade members are facing difficulty in obtaining Delivery Orders from the Singapore Airlines, as they are insisting for payment through demand draft only and refuse to accept Cheque for payment. Because of a Bank Holiday or unable to reach to the office of the Singapore Airlines due to distance from the issuing Bank location the member are facing difficulty in obtaining Delivery Orders from Singapore Airlines.

The representatives of Singapore airlines informed that they have discussed the issue with trade representatives and they are making arrangements to accept payments through electronic modes as well as through cheques on pilot basis for 3 months.

(Point Closed)

B. Procedure for surrendering MEIS similar to the procedure as introduced in Export for surrendering Drawback:

In the previous meeting the representative of ACAAI submitted that as per point b (i) of Public Notice 17/2018 dated 13 July 2018 issued by DGFT, MEIS has to be surrendered with Customs. They requested that any voluntary surrender of MEIS may be allowed to follow the same procedure as that of surrender of Drawback, as per PN 74/2018 dated 15.06.2018 issued by the Commissioner of Customs (Export), ACC, Mumbai. This will save a lot of time.

The issue has been discussed with the AICCAI and it has been observed that they want some relaxation in procedure of issuing the MEIS surrender certificate. It has been explained to AICCAI that the prescribed procedure has to be followed to verify the proportion of export before issuing MEIS surrender Certificate.

In this regard, a public notice no. 07/2019 dt. 02.05.2019 has been issued and uploaded on ACC, official website to facilitate the Trade/CB.

(Point Closed)

C. Availability of License / Authorization ledger balance

The BCBA, in the last meeting had requested that license ledger balance should be available to the concerned importer / broker easily. This is very essential since physical manual debiting has been discontinued totally. Entire debit of Authorization is online and it is very important for trade and industry to check the license balance in the ledger and hence the same should be available without any hindrance. They accordingly requested to issue necessary facility notice towards the same for ease of doing business.

The ADC (import) informed that the issue has been taken up with DG system as a separate window in the system has to be added by DG, System.

(Point Closed)

E. Delay in Issuance of Delivery order by DHL causing delay in clearance.

The BCBA informed that timely clearance and utilization of morning hours is defeated due to delay in issuance of Delivery Orders by M/s. DHL. The DO for flights which have landed in the night and for which all payments have been made to DHL are issued only in the second half of next day. If these DOs are issued by 10:00 AM by DHL they could clear the consignments during first half of the day when there is less rush.

The representative of DHL informed that they have not noticed any such delay. They informed that they collect feedback from their customers and as per these feedbacks, their time gap in issuing DO is around 30 minutes. The BCBA disagreed and informed that their contention is about flights landing in night for which the DOs are not being issued timely so that the morning hours could be utilized.

The representatives of DHL agreed to look into this aspect of problem and asked BCBA to provide some Airway Bills where delay has occurred, so that they could examine the issue and take remedial action.

(Point Closed)

F. Delay in delivery of Cargo

The Representative of ACCAI raised the issue that in the Import truck dock area, there is delay in delivery of cargo after OOC. There is no proper supervision. There members trucks which are parked in the truck dock are forcibly removed by the security even though the loading is not complete.

The representative of MIAL disagreed to that and informed that they have sufficient space and human resource to handle the trucks however only those trucks whose goods are not ready for gate out are kept aside till there goods arrived for loading. Further MIAL promised that they will look into this and take further steps for smooth operations.

(Point Closed)

New Agenda points taken up in the Meeting

POINTS RAISED BY BCBA:

1) After introduction of the TURANT vide CBIC Circular 9 of 2019, the trade members have reported the tremendous delay in clearance of the import consignments.

· Lack of Speed

· Non AEO, RMS Bill of Entries getting delayed in OOC due to Bill of Entries not getting tracked / connected with Shed AO's, Shed Superintendent

· Custom Brokers trace / track these Bill of Entries on system. Every time one has to approach Shed DC for checking the status or take priority.

· After Goods Registration, the status screen only shows Under Superintendent In tracking system.

· If Bill of Entry is assigned to particular Superintendent in Shed and in the event he does not give OOC on same day. If he is absent on next day, the Bill of Entry continues to remain in his ID Queue and Custom broker will be of the impression that OOC is anticipated. Custom Broker has to approach higher authorities to change ID.

We request to depute two officers at the Shed who can attend those bills of entries are required to activate for clearance, also this will help to find out the name of the Superintendent to whom they have to contact for OOC.

The ADC(I) has informed that after implementation of TURANT, difficulties have been noticed however after inserting patches by the System most of these have been resolved. The bills of entry filed by AEO status holder are treated prevailed over non AEO by the systems in terms of facilitation policies extended to AEO status holder.

(Point Closed)

2) Pending request for the installation of the Touch Screens are required at earliest, the CBS working at air cargo is having only one Touch Screen which is also out of order from last seven days. Our request to arrange the 8 to 10 touch screens in the air cargo complex which is very much required to know the status of the bills of entries.

The Commissioner (I) informed that the issue has been discussed with the Commissioner (G) and the procurement of more Touch Screens is under process. Further the ADC (I) informed that most of the times the employees of the CHA's switch off the main supply and the system does not reboot after being switched on. Accordingly he requested the trade to sensitize their staff in this regard and not to switch off the main supply to the kiosk.

(Point Closed)

3) IGST Refund issues

The trade requested for help for resolving following issues:-

a) SB005 Error

b) Difference in refund amount of SB and GST Returns

c) Non reflection of IGST refund amount in the ICEGATE

For Point a, The Commissioner of Customs (Export) informed that it has been decided by CBIC vide Circular No. 40/2018 dated 24.10.2018 that the Shipping bills filed before 15th Nov 2018 can only be amended. Hence Customs cannot do any thing with regard to SB005 Error in case of shipping bills filed after 15.11.2018

For Point b, The Commissioner of Customs (Export) has further informed that the Cutoff date for submission of Revised Refund Return(RRR) was 30th June 2018, after that the system is disabled for this option.

For Point c, The Commissioner of Customs (Export) informed that in some cases the return of GST filed on GST portal doesn't come to Customs (ICES portal) and in those cases refund of GST cannot be processed by Customs. Further he has informed that any exporter/ representative of exporter may contact the GST Help Desk on email at helpdesk@gst.gov.in or call on 01244688999.

(Point Closed)

4) <u>Access Road to Cargo needs immediate intervention</u>

The Trade informed that the access road to ACC is in a very bad shape due to which there is delay in clearance. Further due to the approaching monsoon season, the road needs immediate repairs.

The representative of MIAL informed that the Access road to Air Cargo Complex is under the Control of BMC. However they have assured that issue will be taken up with the BMC shortly. Further they have also assured that minor work viz road levelling, hole patching etc. will be under taken by MIAL before Monsoon.

(Point Closed)

5) It was pointed out that it is mandatory to mention 'Place of Supply' in the invoices issued by Custodian, Airlines, and Consolidators. Non-mentioning of Place of supply is contravention under Rule46 (n)of CGST Rules, but Air india is not mentioning the same on the invoices.

The representative of Air India informed that they will issue "Tax Invoice cum Bank Challan" in which place of supply will be mentioned in term of Rule 46(n) of CGST Rules.

(Point Closed)

6) Trade Requested both the custodian MIAL & AIR INDIA to ensure that the during the rainy season import and export consignments are protected from the rain and flooding in the sheds.

The representative of MIAL and Air India both assured that all arrangements are already made taking into consideration of approaching monsoon. However the commissioner instructed them to be cautious and to make all necessary arrangments in this regard well in advance.

(Point Closed)

POINTS FROM ACAAI:

1) The trade pointed out that the airlines and console agents have a tariff for issuing the Delivery Orders. When they go to collect the DO they refuse to allow any deduction towards TDS. They want the full amount as per their tariff; neither are they producing any Exemption Certificate from the Income Tax Authorities. This is against the Indian Income Tax Law. Accordingly they requested the airlines and console agents to respect the law of the land and allow deduction of TDS.

The Commissioner of Customs (I) informed that as the above mentioned issue pertains to income tax departments, the ACCAI may submit representation in detail for further forwarding to Income tax.

(POINT CLOSED)

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदय आयुक्त महोदय (आयात) और आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Commissioner of Customs (Import) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

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s/d on 20.05.2019

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.